



Council Tax discounts and reductions for people with disabilities and their carers

Discounts (also known as disregards)

A discount on your Council Tax bill does not depend on your income or savings or those of anyone you live with. It depends on who, if anyone, lives in your house.

It is possible to be exempt from paying Council Tax for many reasons, but when applying for discounts, a home will qualify for a 50% discount if no-one over 18 lives there or if there are no 'visible' adults in the property, see below. A 25% discount applies if one adult lives there. Any household with two or more people over 18 must pay the full council tax bill.

When adding up how many people live in your home, certain people can be 'disregarded' and therefore classed as 'invisible' for council tax purposes. This could be because they are carers or because they have a disability.

For example if two people live together and one is classed as 'invisible' they will get a 25% discount because they are treated as a one person household.

Carers

Carers can be classed as 'invisible' if they are living with a person and caring for them for at least 35 hours a week. The person being cared for **must** be getting the care component of Disability Living Allowance at middle or high rate, Attendance Allowance at either rate or the daily living component of Personal Independence Payment at either rate. The person being cared for **must** also be over 18 and **must not** be the partner of the person looking after them.

For Example, Mrs Green is divorced and lives with her mother who she looks after for 35 hours a week. Her mother gets the higher rate of Attendance Allowance. They qualify for a 25% discount because as a carer Mrs Green is 'invisible' and so the house is treated as having only one adult living there.

If there are two people living with the disabled person and each cares for the person for 35 hours a week it is possible for both carers to be classed as 'invisible' and therefore the household will still qualify for a discount.

People with a severe mental impairment (also referred to as SMI)

People with a severe mental impairment who live alone are totally exempt from Council Tax if they have a mental condition which affects their ability to manage things on their own. This includes people who for example have a severe mental illness, a learning disability or Alzheimer's disease.

To receive this exemption, a person must have a certificate from a GP confirming the above and must also be claiming a disability benefit such as:

- Disability Living Allowance (DLA) care component at middle or high rate
- Personal Independence Payment (PIP) daily living component at either rate
- Attendance Allowance (AA) at either rate
- Employment and Support Allowance (ESA)
- Incapacity Benefit
- Income Support (where the claim includes a disability premium)

People with a severe mental impairment that do not live alone are 'invisible' and so they and the person they live with may get a discount on their Council Tax.

For example, Mrs Green's mother suffers from Alzheimer's disease and receives the higher rate of Attendance Allowance. She is classed as 'invisible' because she has a severe mental impairment. Mrs Green is also classed as 'invisible' because she cares for her mother for at least 35 hours a week. They will get a 50% discount on their Council Tax as there are no 'visible' adults in the house.

Disabled Reduction

Qualifying for a disabled reduction does not depend on the amount of income or savings you have. You may get a reduction if anyone who lives in your home (including yourself or any children) is permanently disabled and your home contains:

- A room that is needed and mainly used by the person with a disability, for example, if a couple sleep in separate rooms because one is disabled. Or the disabled person has to sleep in a downstairs room because due to their disability they are unable to get upstairs
- A second bathroom or kitchen needed by a disabled person
- Enough floor space to use a wheelchair in the house

These facilities or rooms do not have to be specially installed or adapted; they just have to be needed by someone living in the house because of their disability.

The amount of Council Tax you pay depends on which of the 8 valuation bands your home is placed in; band A for the cheapest properties up to Band H for the most expensive.

If you qualify for this reduction, your home will be treated as if it is in the lower valuation band than the one originally allocated. For example, if your home is in Band D, you will pay the amount for a band C instead. If you qualify and

live in a Band A property you will still receive a reduction in your bill which is a reduction of one sixth of your total bill.

For example, your Band A Council tax bill is £1050. If you qualify for a reduction your £1050 bill will be reduced by £175, as this amount is once six of your bill.

Older Person's Flats – exempted from Council Tax

A property which includes a separate self-contained unit (often known as a 'Granny Flat') which is the home of relative who is aged 65 or over who is disabled will not be assessed as a separate dwelling. This means that there will be no Council Tax to pay for the flat and the bill for your main property will not increase either.

Carers unoccupied home – exempted from Council Tax

Carer's who leave their own home (owned or rented) unoccupied to provide care elsewhere can have their own home exempted from Council Tax

This applies if the person you provide care for is over 65, disabled, ill, has previously had alcohol or drug dependence or has previously had a mental illness or disorder.

You, the carer, must be absent from your own home because of these caring responsibilities.

How to claim a discount, disabled reduction or exemption

To claim a discount, reduction or exemption the person responsible for paying the bill needs to contact their local Council Tax office and request a form which you must complete. In some cases your doctor may need to provide information to help your claim or someone from the council may visit your home.

There are no limits on backdating the discounts and reductions as long as you fulfil the qualifying conditions for the period you are claiming for.

The contact telephone numbers of the local Council tax offices in Nottinghamshire are;

Broxtowe	01159 177 777
Ashfield	01623 457 400
Mansfield	01623 463 463
Gedling	01159 013 901
Newark and Sherwood	01636 650 000
Bassetlaw	01909 533 234
Rushcliffe	01159 819 911

If you are refused a discount or disabled reduction

If you are refused a disabled reduction or discount you need to write to the council to tell them why you disagree with the decision. If they do not change their mind you can then formally appeal.

If paying your Council tax causes you hardship you can ask the council to use their discretion to reduce your bill by the amount of the reduction or discount you have been refused. It is best to seek advice at this stage to check you have a good case (see below).

Remember it is possible to get both a discount and a reduction on your bill, plus you can claim a rebate on your Council Tax bill if you or the people you live with have a low income.

If you need further advice on Council Tax discounts and reductions, you can contact Nottinghamshire County Council for more information using the details provided below.

Contact information:

Phone: 0300 500 80 80
Monday - Friday, opening times may vary.
Calls are charged at local rate.

Email: enquiries@nottscc.gov.uk
Website: www.nottinghamshire.gov.uk

Phone 0300 500 80 80 if you need the information in a different language or format.

The Council is committed to protecting your privacy and ensuring all personal information is

kept confidential and safe. For more details see our general and service specific privacy notices at: <https://www.nottinghamshire.gov.uk/global-content/privacy>